



UMTMUN V

STUDY GUIDE FOR



PAKISTAN NATIONAL
ASSEMBLY (PNA)

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INTRODUCTION TO THE COMMITTEE

The Pakistan National Assembly is the lower house of Parliament and the primary legislative body of the federation. In this committee the focus is a single, precisely framed agenda: evaluating the impact of the Constitution (Eighteenth Amendment) Act, 2010 on federalism, governance, and provincial autonomy.

This is not a crisis simulation. It is a legislative exercise. Delegates are expected to work from the constitutional text, official records, and careful reasoning rather than from slogans. The Amendment altered a large number of articles of the 1973 Constitution. Understanding what it changed on paper, and then examining how those changes have operated in practice, is the core task of the committee.

BACKGROUND: FEDERALISM UNDER THE 1973 CONSTITUTION

The Constitution of the Islamic Republic of Pakistan, 1973, established a federal system with a Federal Legislative List and a Concurrent Legislative List. On subjects in the Concurrent List both the federal Parliament and the provincial assemblies could legislate, with federal law prevailing in case of conflict. The Constitution also created the Council of Common Interests and the National Finance Commission as intergovernmental institutions.

Over subsequent decades, successive amendments and political practice altered the balance between the federation and the provinces. Provisions such as the former Article 58(2)(b) allowed the President to dissolve the National Assembly. Periods of military rule and strong presidential authority further concentrated power at the centre. By the late 2000s a broad political consensus had formed that the constitutional framework required restoration of its parliamentary and federal character.



THE CONSTITUTION (EIGHTEENTH AMENDMENT) ACT, 2010

The Constitution (Eighteenth Amendment) Act, 2010 (Act No. X of 2010) was passed by the National Assembly on 8 April 2010 and by the Senate shortly thereafter. It received the assent of the President and came into force in accordance with its own terms. The Act is the primary legal instrument for this agenda. Its full text is available through official compilations of the laws of Pakistan, including the Pakistan Code.

The Amendment touched a very large number of articles. It repealed the Constitution (Seventeenth Amendment) Act, 2003, and declared certain Legal Framework Orders to have been made without lawful authority. It also made extensive changes to the distribution of legislative powers, the institutions of intergovernmental coordination, the powers of the President, and the names of the provinces.

KEY CONSTITUTIONAL CHANGES

I. ABOLITION OF THE CONCURRENT LEGISLATIVE LIST

One of the most consequential changes was the omission of the Concurrent Legislative List from the Fourth Schedule of the Constitution. Subjects that had previously been open to both federal and provincial legislation were, with limited exceptions, moved into the exclusive provincial sphere. Residual powers not enumerated in the Federal Legislative List were confirmed as provincial. This reallocation of legislative competence is central to any discussion of provincial autonomy after 2010.



2. RESTRUCTURING OF THE FEDERAL LEGISLATIVE LIST

The Federal Legislative List was retained and reorganised. Part II of that List was expanded to include subjects such as railways, minerals, oil and natural gas, electricity, major ports, national planning and economic coordination, and certain regulatory matters. Policies in relation to Part II subjects fall under the Council of Common Interests rather than exclusive federal cabinet control.

3. COUNCIL OF COMMON INTERESTS

The Amendment reconstituted the Council of Common Interests. The Prime Minister chairs the Council. Its membership includes the Chief Ministers of the provinces and federal nominees. The Constitution requires the Council to meet at least once every ninety days and provides for a permanent secretariat. The CCI is charged with formulating and regulating policies in relation to Part II subjects and with functions of coordination and dispute resolution among the federation and the provinces.

4. PARLIAMENTARY SUPREMACY AND PRESIDENTIAL POWERS

The Amendment removed the President's power under the former Article 58(2) (b) to dissolve the National Assembly. This change restored a more clearly parliamentary character to the system. Related provisions reinforced the principle that suspension or holding in abeyance of the Constitution is not lawful.

5. PROVINCIAL NAMES AND OTHER PROVISIONS

Article 1 was amended to substitute the names Balochistan, Khyber Pakhtunkhwa, and Sindh for the earlier spellings and designations. The Amendment also revised procedures relating to the appointment of judges of the superior courts and the Chief Election Commissioner, among other institutional changes



FEDERALISM AFTER THE AMENDMENT

On paper the Eighteenth Amendment moved the constitutional design of Pakistan toward a clearer dual federalism in which provinces hold exclusive legislative power over a wide range of subjects and share responsibility for others through the CCI. The formal instruments of unilateral presidential dissolution of the National Assembly were removed. The institutions of intergovernmental coordination were strengthened in the text.

Whether these formal changes produced a corresponding shift in political and administrative practice is the central evaluative question before the committee. Federalism is not only a set of constitutional clauses; it is also the pattern of negotiation, resource allocation, and institutional behaviour that develops around those clauses. Delegates should distinguish carefully between what the Constitution now provides and how the federation has actually functioned since 2010.

GOVERNANCE DIMENSIONS

The Amendment transferred legislative and administrative responsibility for major social sectors — including education and health — to the provinces. Governance outcomes in those sectors therefore became primarily provincial responsibilities. The quality of provincial legislation, the capacity of provincial departments, the design of service-delivery systems, and the accountability of provincial governments to their electorates all became more consequential.

At the same time, the federation retained important roles in macroeconomic management, national standards, inter-provincial coordination, and subjects remaining on the Federal Legislative List. The practical boundary between federal and provincial action in areas such as regulation, planning, and residual federal programmes has been a continuing subject of discussion.

The committee should examine both the opportunities created by clearer provincial ownership and the coordination problems that can arise when responsibilities are divided.

PROVINCIAL AUTONOMY

Provincial autonomy after the Eighteenth Amendment rests on three main pillars in the constitutional text: exclusive legislative competence over subjects formerly on the Concurrent List and residual matters; a protected share in the federal divisible pool of taxes; and institutional voice through the Council of Common Interests on Part II subjects.

Autonomy in practice also depends on fiscal capacity, administrative competence, and the absence of informal recentralisation. Provinces differ in population, economic base, and institutional strength. Any evaluation of the Amendment's impact on provincial autonomy must therefore take account of variation across the four provinces rather than treating the provincial tier as uniform.

FISCAL ARRANGEMENTS AND THE NFC AWARD

The Seventh National Finance Commission Award, finalised in 2009 and implemented from 2010, raised the provincial share of the federal divisible pool and introduced multiple criteria for horizontal distribution among the provinces. The Eighteenth Amendment reinforced the fiscal position of the provinces by providing, in Article 160, that the share of the provinces in each Award shall not be less than the share given to the provinces in the previous Award. It also required monitoring of the implementation of the Award.

Official materials on the NFC, including reports and monitoring documents, are maintained by the Ministry of Finance.



The interaction between the constitutional protection of provincial shares, the actual composition of the divisible pool, and the expenditure responsibilities of the two levels of government remains a central issue in Pakistani fiscal federalism. Delegates should consult primary NFC documents when discussing fiscal questions.

COUNCIL OF COMMON INTERESTS

The CCI is the principal constitutional forum for cooperative management of Part II subjects and for intergovernmental coordination. Its design — Prime Minister as chair, provincial Chief Ministers as members, mandatory regular meetings, permanent secretariat — was intended to give provinces an institutional role in shared domains.

The effectiveness of the CCI depends on the regularity of its meetings, the quality of its agenda and preparation, and the implementation of its decisions. These are empirical questions that the committee can address by reference to official records of the Council's work where available. The gap, if any, between constitutional design and operational practice is a legitimate subject of legislative scrutiny.

QUESTIONS FOR DEBATE

Delegates should prepare to address the following questions with reference to the constitutional text and official materials:

What precise changes did the Eighteenth Amendment make to the distribution of legislative powers between the federation and the provinces?

How does the reconstituted Council of Common Interests alter the formal structure of intergovernmental coordination, and what does its record of meetings and decisions suggest about its practical role?

How should the impact of the Amendment on governance be assessed in sectors such as education and health that were transferred to exclusive provincial competence?

Does the constitutional design after 2010 provide adequate mechanisms for resolving disputes over natural resources, electricity, and other Part II subjects?

What further legislative or institutional steps, if any, would improve the implementation of the existing constitutional framework without reopening the core settlement of 2010?

How should differences in capacity and resources among the four provinces be taken into account when evaluating provincial autonomy?

SUGGESTED SOURCES

Delegates are strongly encouraged to work from primary materials:

The Constitution of the Islamic Republic of Pakistan (official updated text published by the National Assembly).

The Constitution (Eighteenth Amendment) Act, 2010 (Act No. X of 2010), available through the Pakistan Code and official compilations.

Ministry of Finance materials on the National Finance Commission, including the Seventh NFC Award and subsequent monitoring reports.

Official records and decisions of the Council of Common Interests where publicly available.

Relevant provincial legislation enacted after 2010 in formerly concurrent domains.

RULES OF PROCEDURE

The committee follows standard parliamentary procedure adapted for a National Assembly simulation. The Chair facilitates debate, recognises speakers, guides the drafting and merging of documents, and oversees voting. All official positions and collective decisions take place in the formal chamber. Delegates are expected to remain in character and to observe the norms of respectful parliamentary conduct.

CLOSING NOTE

The Eighteenth Amendment is a constitutional text. Its impact is a matter of both law and practice. The committee's work will be strongest when it stays close to the primary sources, distinguishes clearly between formal design and operational reality, and proposes recommendations that are constitutionally grounded and practically workable.

